

110	Lewis vs. Salus Healthcare, LLC, a California limited liability company 2021-01213154	Motion for Approval of PAGA Settlement Plaintiffs Ciara Lewis and Ladonia White’s Motion for Approval of PAGA Settlement is CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiffs’ counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 7/27/2021, Plaintiff Ciara Lewis filed a PAGA complaint against Defendants (1) Salus Healthcare, LLC; (2) Aspen Healthcare Corporation; (3) Salus Hospice, LLC; and (4) Salus Home Health, alleging a single cause of action for PAGA penalties. (ROA #2.) On 3/12/2025, the parties filed a joint notice of settlement, stating that the parties had reached a global settlement involving this case and <i>White v. Los Angeles Homecare, LLC</i>, Case No. 30-2024 01436416-CU-OE-CXC. (ROA #154.) On 7/15/2025, the Court signed a stipulated order to consolidate this case with the <i>White</i> case. (ROA #174.) The <i>White</i> complaint was filed by Plaintiff Ladonia White on 10/30/2024 and also alleges a single cause of action for PAGA penalties. (ROA #168.) The named defendants are (1) Los Angeles Homecare LLC; (2) Salus Home Health and Hospice, Inc.; (3) Salus Hospice, LLC; (4) Salus Home Health; (5) Salus Homecare; (6) Aspen Healthcare Corporation; (7) Salus Homecare LLC; and (8) Mark Mortensen. (<i>Id.</i>) On 2/24/2025, the Court entered an order, at Plaintiff White’s request, dismissing without prejudice Defendants (i) Salus Home Health; (ii) Salus Homecare; (iii) Salus Hospice, LLC; and (iv) Aspen Healthcare Corporation. (ROA #170.) On 4/9/2026, Plaintiffs filed the instant Motion for Approval of PAGA Settlement and submitted for the Court’s review the Private Attorneys General Act Settlement Agreement and Release (“Settlement Agreement”) and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties’ proposed settlement of Plaintiffs’ PAGA claims for the non-reversionary gross settlement amount (GSA) of \$590,000. The settlement includes the claims of 1,101 PAGA Aggrieved Employees, defined as “[a]ll current and former hourly-paid or non-exempt employees who worked for any of the Defendants in the State of California during the PAGA Period, including, but not limited to all current and former hourly-paid or non-exempt employees who worked for any of the Defendants within the State of California who earned shift differentials/non-discretionary bonuses/nondiscretionary performance pay which was not used to calculate the correct regular rate of pay used to calculate the overtime rate.” The period from November 25, 2019 through April 30, 2025 is the PAGA Period for the Lewis Action and the period June 3, 2023
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to April 30, 2025 is the PAGA Period for the White Action (collectively the “PAGA Period”).

The Court concludes that an attorneys’ fee award totaling \$177,000 or 30% of the GSA, constituting a 0.60 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action’s contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Therefore, the Court deducts \$42.80 from the requested amount and awards \$24,275.07.

The Court further concludes that an enhancement or “General Release Fee” of \$5,000 per named Plaintiff is fair, adequate, and reasonable for a settlement of this size, given Plaintiffs’ broader release compared to the aggrieved employees’ release and given Plaintiffs’ representative service in this case which is not separately being compensated.

Further, the Court has identified the following issues with the moving papers, which must be addressed by Plaintiffs’ counsel before approval can be granted:

1. The copy of the Settlement Agreement submitted at ROA #205, Exhibit 1 is missing the Exhibit A attached thereto. As the proposed order and judgment must reference the declaration to which the *full* Settlement Agreement is attached, counsel should file a declaration that attaches a *full* copy of the Settlement Agreement including the referenced Exhibit A.
2. As noted above, on 2/24/2025, the Court entered an order, at Plaintiff White’s request, dismissing Defendants Salus Home Health; Salus Homecare; Salus Hospice, LLC; and Aspen Healthcare Corporation from the White complaint. (ROA #170.) While Defendants Salus Home Health; Salus Hospice, LLC; and Aspen Healthcare Corporation remained defendants in the Lewis complaint (see ROA #2), *Defendant Salus Homecare was dismissed from the White complaint and also not named in the Lewis complaint. Therefore, Salus Homecare is not a defendant in this action, and the Settlement Agreement should not name Salus Homecare as such.*
3. The moving papers fail to provide the Aggrieved Employees’ estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments.
4. The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the parties should know or be able to determine the number of Aggrieved Employees and qualifying pay periods based on the PAGA Period.
5. In ¶ 8(a) of the Settlement Agreement, the release includes a direct release by the State of California, but the State is not directly participating in this lawsuit. Instead, this provision of the settlement agreement should be amended to read: “Plaintiffs *on*

		<i>behalf of the State of California and the Aggrieved Employees will be deemed to have knowingly and voluntarily released” (italics added to denote edits).</i> 6. Plaintiffs’ counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none. 7. An invoice from the administrator is required to support the \$18,000 administrator fee request. 8. The Settlement Agreement should specify that the Court retains continuing jurisdiction pursuant to California Code of Civil Procedure section 664.6. 9. Plaintiffs’ counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. Plaintiffs’ counsel must also provide a revised notice/cover letter to aggrieved employees that will accompany the payment to them, with the following revisions: 1. The notice/cover letter should be revised so as to be consistent with the resolution of the issues identified above. 2. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 3. The pages should be numbered. 4. The notice/cover letter states that the definition of “Aggrieved Employees” is “all current and former hourly-paid or non-exempt employees who worked for any of the Defendants in the State of California during the period <i>from November 25, 2019 through April 30, 2025 for those covered by the Lewis Action and June 3, 2023 through April 30, 2025 for those covered by the White Action.</i>” This language does not match the definition for “Aggrieved Employees” used in Settlement Agreement at ¶ 3(a)(5). The two should be consistent. Plaintiffs’ counsel must also provide a revised [Proposed] Order Approving PAGA Settlement and Judgment with the following revisions: 1. The proposed order and judgment should be revised so as to be consistent with the resolution of the issues identified above. 2. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 3. Attorney information must be deleted from the caption page. 4. Again, in the 1st paragraph, “Defendants” should not include Salus Homecare. 5. The proposed order and judgment should identify the Settlement Agreement by its actual name. 6. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 7. In ¶ 21, the words “or object to” should be deleted. 8. The proposed order and judgment should include a paragraph setting a Final Accounting hearing and the deadline for the filing of
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		supporting papers in advance of the hearing. Counsel should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. 9. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. The Court further refers Plaintiffs' counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiffs' counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Ruiz vs. Alloy Die Casting Co. 2024-01425826	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$167,420 PAGA settlement. The court has the following questions and comments: 1. It does not appear all moving papers were submitted to the LWDA. Plaintiff must file with the court an actual proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide plaintiff's total anticipated consideration to be received (including for any individual